prosecuted under laws which would be rightly applied to spies and traitors. They are now strong supporters of Snowden's chosen course of action.

The Snowden revelations have also exposed the fact that senior officials, particularly America's Director of National Intelligence, James Clapper, have not been fully frank with Congress. He was asked in an open Senate Intelligence Committee hearing in March: 'Does the NSA collect any type of data at all on millions or hundreds of millions of Americans?' A correct response would have been to give a boilerplate answer: data and meta-data are collected within the law and further information would be available in a closed session. Instead he answered 'No Sir'; when that response was queried, he continued: 'Not wittingly … there are cases where they could inadvertently perhaps collect, but not wittingly.'[62] In a strict sense that was true: phone records are not exactly 'data', and storing them for future scrutiny is not exactly 'collecting'. The members of the committee were aware of the programmes concerned, having been briefed on them in classified sessions. The question was, in a sense, a trap, aimed at bouncing Clapper into revealing more than he wanted. But for all that, as a member of the executive branch, he is under a solemn duty not to mislead the legislature—or to mislead citizens who are observing its questioning of their government officials. For whatever mixture of motives or confusion, he breached that duty. He apologised later, pleading confusion not deliberate deceit. Though charges that he 'perjured' himself or deliberately lied to Congress are an exaggeration, in his place I think I would have resigned.

Lawyerly definitions of terms such as 'data', 'collect' and 'abuse' have allowed the NSA to stretch its remit in a way that some may now regard in retrospect as excessive. But it has done so within the system, not outside it. NSA officials (like their counterparts in GCHQ and allied agencies) are not cowboys, brutes or madmen. They signed up to defend their country's freedoms, not to